

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
RICARDO BARET,

Plaintiff,

Index No.: 23638/2019E

-against-

**AMENDED VERIFIED
COMPLAINT**CITY OF NEW YORK, INDIVIDUALLY AND IN THEIR
OFFICIAL CAPACITY AS NEW YORK CITY POLICE
OFFICERS, ROBERT KLEIN, NORBERTO TIRADO,
LUIS SALVADOR, THOMAS MICHAELS, MICHAEL
DISKIN, and JOHN or JANE DOE 1-10,Defendants.
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Plaintiff, Ricardo Baret, by his attorneys, Sim & DePaola, LLP, for his complaint against
the above Defendants, alleges as follows:

1. The claim arises from a March 28, 2016 incident in which defendants, acting under color of state law, unlawfully arrested and detained Mr. Baret for an incident that allegedly occurred on or about December 22, 1990, at approximately 1:05 A.M. at the corner of 157th Street and Gerard Avenue, County of the Bronx, State of New York. Mr. Baret was subsequently charged with Murder in the Second Degree. As a result, Mr. Baret was deprived of his liberty, denied due process of law, and caused to sustain physical and emotional injuries. Mr. Baret was wrongfully incarcerated for approximately twenty-four (24) months, until he was released, on or about, March 27, 2018, when he was fully acquitted after a trial by jury.
2. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court may deem just and proper.

PARTIES

3. Plaintiff Ricardo Baret ("Mr. Baret") resides at 424 Turneur Avenue, Bronx County, State of New York.
4. The Defendant City of New York (or "the City") is a municipal corporation organized under the laws of the State of New York.
5. At all times relevant hereto, Defendant City, acting through the New York City Police Department (or "NYPD") was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.
6. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.
7. Defendant Robert Klein ("Klein") was, at all times here relevant, a police officer and/or detective employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Klein was, at all times relevant herein, a Police Officer and/or detective under Shield No. 2872, Tax Reg. No. 936874, at Bronx Homicide Squad, Simpson Street, Bronx, New York 10459. Defendant Klein is being sued in his individual and official capacities.
8. Defendant Norberto Tirado ("Tirado") was, at all times here relevant, a police officer and/or detective employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Tirado was, at the

time relevant herein, a Police Officer and/or detective under Shield No. 06650, Tax Reg. No. 896043, at the 44th Precinct Detective Squad, 2 E 169th Street, Bronx, New York 10452. Defendant Tirado is being sued in his individual and official capacities.

9. Defendant Luis Salvador ("Salvador") was, at all times here relevant, a police officer and/or detective employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Salvador was, at the time relevant herein, a police officer and/or detective under Shield No. 4181, Tax Reg. No. 899805, at Bronx Homicide Squad, Simpson Street, Bronx, New York 10459. Defendant Salvador is being sued in his individual and official capacities.
10. Defendant Thomas Michaels ("Michaels") was, at all times here relevant, a police officer and/or detective employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Michaels was, at the time relevant herein, a police officer and/or detective under Shield No. 5514, Tax Reg. No. 894187. Upon information and belief, Defendant Michaels is retired and no longer employed by the NYPD or the City of New York. At this time, Plaintiff is unaware of Defendant Michaels' address, but believes such information is within the knowledge of defendants. Defendant Michaels is being sued in his individual and official capacities.
11. Defendant Michael Diskin ("Salvador") was, at all times here relevant, a police officer and/or detective employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Diskin was, at the time relevant herein, a police officer and/or detective under Shield No. 3056 and Tax Reg. No. 892980, at the 44th Precinct Detective Squad, 2 E 169th

Street, Bronx, New York 10452. Defendant Diskin is being sued in his individual and official capacities.

12. At all times relevant Defendants John and Jane Doe 1 through 10 were police officers, detectives, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff does not know the true names and/or tax registration numbers of Defendants John and Jane Doe 1 through 10 but is within knowledge of the defendants.
13. At all times relevant herein, Defendants John and Jane Doe 1 through 10 were acting as agents, servants and employees of the City of New York, the NYPD. Defendants John and Jane Doe 1 through 10 are being sued in their individual and official capacities.
14. At all times here mentioned Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.
15. Within 90 days of accrual dates for these claims, Plaintiff timely filed a written notice of claim with the New York City Office of the Comptroller.
16. Over 30 days have elapsed since the filing of those notices, and this matter has not been settled or otherwise disposed of.
17. Plaintiff has complied with municipal defendant's request for an oral examination pursuant to Section 50-H of the New York General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.
18. This action has been commenced within one year and ninety days from the relevant accrual dates.

FACTUAL CHARGES

19. On March 28, 2016, at approximately 10:00 a.m., Mr. Baret was arrested inside of the 44th NYPD Precinct, located at 2 East 169th Street, Bronx, New York, for the murder of Valentin Medina, alleged to have occurred on December 22, 1990, in the vicinity of 157th Street and Gerard Avenue, Bronx, NY.
20. On or about February of 2016, Defendant Klein was assigned to investigate the homicide of Valentin Medina, which occurred on December 22, 1990 in the vicinity of 157th Street and Gerard Avenue, Bronx, NY, which led to the arrest and prosecution of the Plaintiff.
21. On or about February 2016, defendant Salvador, was assigned to assist defendant Klein with the investigation of the homicide of Valentin Medina, which led to the arrest and prosecution of the Plaintiff.
22. On or about March 28, 2016, defendants, including defendant Klein, defendant Salvador, defendant Diskin, defendant Michaels, and defendant Tirado, unlawfully arrested, handcuffed, seized and searched plaintiff in an excessive manner about his person, causing him physical pain and mental suffering.
23. On or about March 28, 2016, defendants, including defendant Klein, defendant Michaels, defendant Diskin, defendant Tirado and defendant Salvador transferred plaintiff to the 46th precinct where he was illegally questioned and placed in a cell.
24. On or about March 28, 2016 at the 44th precinct, defendants, including defendant Tirado, unlawfully, and intentionally, using illegal methods, obtained a statement from plaintiff after he had requested the assistance of counsel.

25. Plaintiff never committed any crimes or violations of the law, including the murder of Valentin Medina.
26. Defendants, including Klein, Salvador, Diskin, Tirado and Michaels, were fully aware, at all times, that they lacked probable cause to arrest Mr. Baret.
27. Defendants, including Klein, Salvador, Diskin, Tirado and Michaels, lacked probable cause because they used improper and suggestive identification procedures and coercion to unlawfully accuse and arrest Mr. Baret of a crime defendants knew he did not commit.
28. Defendant Klein was Mr. Baret's arresting officer and signed his criminal court complaint, knowingly and falsely accusing Mr. Baret of Murder in the Second Degree.
29. Mr. Baret was transferred back to a cell at the 44th precinct before he was taken to the Central Booking. Mr. Baret remained in a cell at Central Booking until arraignment 24 hours later, where bail was set.
30. Defendants, including defendants Klein, Tirado, Salvador, Diskin and Michaels testified before a grand jury convened to investigate the charges against Mr. Baret and offered false, fraudulent and misleading testimony to ensure that he was indicted, namely that Mr. Baret was identified as the perpetrator of a murder.
31. Defendant, including defendants Klein, Tirado, Salvador, Diskin and Michaels, procured Mr. Klein's indictment via fraud, perjury, the suppression of evidence and other conduct undertaken in bad faith, including, but not limited to the use of false statements and identifications coerced from alleged witnesses.

32. Defendants, including defendants Klein, Tirado, Salvador, Diskin and Michaels, committed gross deviations from proper police procedure throughout the course of their investigation of Mr. Baret, namely the failure to properly memorialize witness statements, the failure to properly document their investigation, the withholding and suppression of exculpatory evidence, the use of improper identification procedures, the coercion of witnesses, and the perversion of witness statements to better suit their purpose of arresting and convicting Mr. Baret for a crime defendants knew he did not commit.
33. Defendants, including defendants Klein, Tirado, Salvador, Diskin and Michaels, failed to disclose, misrepresented and provided false material details, regarding the presence of probable cause, namely the alleged witnesses' false statements and identifications that were procured via illegal tactics.
34. Defendants, including defendants Klein, Tirado, Salvador, Diskin and Michaels, were fully aware, at all times, that the alleged witnesses did not observe Mr. Baret any crimes or violations of the law.
35. Mr. Baret was unable to meet his bail conditions and was sent to Rikers Island where he would remain until he was acquitted of all charges after trial on March 27, 2018,
36. At no point did the Defendants, including defendants Klein, Tirado, Salvador, Diskin and Michaels, ever observe Mr. Baret commit any crime or offense.
37. At no point were the Defendants, including Klein, Tirado, Luis Salvador, Diskin and Michaels, ever told by any witnesses that Mr. Baret committed any crime or violation of the law.

38. The Defendants, including defendant Klein, Tirado, Luis Salvador, Diskin and Michaels, had no probable cause or reasonable suspicion to arrest, detain or stop Mr. Baret.
39. Mr. Baret did not violate any law or local ordinance.
40. Defendants, including defendants Klein, Tirado, Salvador, Diskin and Michaels, were fully aware that there was no probable cause to believe a prosecution would succeed against Mr. Baret.
41. Defendants, including defendants Klein, Tirado, Salvador, Diskin and Michaels, knowingly and intentionally forwarded false, misleading, incomplete and erroneous information, namely that a witness observed Mr. Baret fire a gunshot that struck Valentine Medina in the back, to prosecutors so that a prosecution would be initiated against Mr. Baret.
42. Upon information and belief, the NYPD, the City of New York, and their respective policy and decision makers and supervisors have imposed or acquiesced to policies or customs within the NYPD that resulted in Plaintiff's arrest without probable cause.
43. Upon information and belief, the NYPD, the City of New York, and their respective policy and decision makers and supervisors have failed to provide adequate training in the identification of probable cause or reasonable suspicion.
44. The instant arrest of Plaintiff without the presence of probable cause was so egregious as to amount to the deliberate indifference by the policy and decision makers within the NYPD and City of New York, because the need for enhanced training and supervision is obvious due to the clear lack of any probable cause to arrest and prosecute Plaintiff.

45. Upon information and belief, further details and factual allegations will become available after discovery is completed, as the current policies and customs of the NYPD and City of New York are within the exclusive knowledge of defendants.
46. Upon information and belief, the personnel files and records of the individual officers involved in Plaintiff's arrest will reveal a history of Constitutional violations that will indicate that defendant City knew, or should have known that the individual officers were unfit for employment as NYPD police officers and would be likely to commit Constitutional violations similar to the violations that were committed against Mr. Baret.
47. At all times relevant hereto, defendants, including Klein, Tirado, Salvador, Diskin and Michaels, acted maliciously and with intent to injure Plaintiff.
48. At all times relevant hereto, defendants, including Klein, Tirado, Salvador, Diskin and Michaels, were involved in the decision to arrest Plaintiff without probable cause or failed to intervene when they observed others arresting Plaintiff without probable cause.
49. At all times relevant hereto, defendants, including defendants Det. Klein, Det. Tirado, Det. Luis Salvador, Ret. Police Officer Thomas Michaels, engaged in fraud, perjury, the suppression of evidence and other actions conducted in bad faith, or failed to intervene when defendants observed others doing so, all in furtherance of Plaintiff's criminal prosecution.
50. As a direct and proximate result of the acts of defendants, including the City of New York, Klein, Tirado, Salvador, Michaels, Plaintiff suffered the following injuries and damages: violations of his rights pursuant to the Fourth and Fourteenth Amendment

of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

FIRST CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law

51. The above paragraphs are here incorporated by reference as though fully set forth.
52. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.
53. Plaintiff was conscious of his confinement.
54. Plaintiff did not consent to his confinement.
55. Plaintiff's arrest and false imprisonment was not otherwise privileged.
56. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
57. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
58. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

59. The above paragraphs are here incorporated by reference as though fully set forth.

60. The Defendants, acting under color of state law, violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.
61. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.
62. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.
63. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
64. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

THIRD CAUSE OF ACTION

Assault and Battery Under
New York State Law

65. The above paragraphs are here incorporated by reference as though fully set forth.
66. Defendants made plaintiff fear for his physical well-being and safety and placed him in apprehension of immediate harmful and/or offensive touching.
67. Defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered him without his consent.
68. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

69. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

70. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FOURTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

71. The above paragraphs are here incorporated by reference as though fully set forth.

72. The Defendants, acting under color of state law, violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.

73. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered him without his consent.

74. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

75. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FIFTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

76. The above paragraphs are here incorporated by reference as though fully set forth.

77. Defendants initiated the prosecution against Plaintiff.

78. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.

79. Defendants acted with malice.
80. The prosecution was terminated in Plaintiff's favor when the criminal charge was dismissed and sealed.
81. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
82. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
83. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SIXTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

84. The above paragraphs are here incorporated by reference as though fully set forth.
85. Defendants, acting under color of state law, initiated the prosecution against Plaintiff.
86. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.
87. Defendants acted with malice.
88. The prosecution was terminated in Plaintiff's favor when he was acquitted of all charges.
89. Accordingly, Defendants violated Plaintiff's Fourth Amendment rights.
90. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
91. By reason of the above, the amount of damages sought on this cause of action exceeds

the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SEVENTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

92. The above paragraphs are here incorporated by reference as though fully set forth.
93. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
94. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
95. Defendants intended to inflict substantial harm upon Plaintiff.
96. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
97. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
98. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
99. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

EIGHTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

100. The above paragraphs are here incorporated by reference as though fully set forth.

101. Defendants, acting under color of state law, arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
102. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
103. Defendants intended to inflict substantial harm upon Plaintiff.
104. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
105. Defendants' actions deprived Plaintiff of his right to free from illegal searches and seizures, as well as his right not to be deprived of his liberty without due process of law.
106. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
107. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

NINTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

108. The above paragraphs are here incorporated by reference as though fully set forth.
109. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to

prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

110. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

111. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

112. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TENTH CAUSE OF ACTION

Failure to Intervene Under

42 U.S.C. § 1983 Against Individual Defendants

113. The above paragraphs are here incorporated by reference as though fully set forth.

114. Those Defendants, acting under color of state law, that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

115. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

116. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

117. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

118. By reason of the above, the amount of damages sought on this cause of action

exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

ELEVENTH CAUSE OF ACTION

Negligent Hiring, Retention and Supervision Under
New York State Law

119. The above paragraphs are here incorporated by reference as though fully set forth.
120. Defendant City owed a duty of care to Plaintiff to adequately hire, retain and supervise its employee defendants.
121. Defendant City breached that duty of care.
122. Defendant City placed defendants in a position where they could inflict foreseeable harm.
123. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.
124. Defendant City failed to take reasonable measures in hiring, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiff.
125. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
126. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TWELVTH CAUSE OF ACTION
Municipal "Monell" Liability Under
42 U.S.C. § 1983 Against Defendant City

127. The above paragraphs are here incorporated by reference as though fully set forth.
128. Defendant City, under color of state law, maintained a policy, custom or practice that caused Plaintiff to be deprived of his Constitutional right to free from illegal searches and seizures.
129. Defendant City's illegal practice is so consistent and widespread that it constitutes a custom or usage of which a supervising policy maker must have been aware of.
130. Defendant City and its policymakers failed to provide adequate training or supervision to subordinates to such an extent that it is tantamount to their deliberate indifference towards the rights of those who come into contact with Defendant City's employees.
131. Defendant City's employees engaged in such egregious and flagrant violations of Plaintiff's Constitutional rights that the need for enhanced supervision and training is obvious and therefore tantamount to a display of deliberate indifference by Defendant City and its policymakers towards the rights of individuals who come into contact with defendant City's employees.
132. Defendant City's conduct violated Plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution.
133. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
134. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have

jurisdiction.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;

n) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988;

Together with the costs and disbursements of this action

Dated: Bayside, New York
March 27, 2019



SIM & DEPAOLA, LLP

By: Samuel C. DePaola

Attorneys for Plaintiff

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ATTORNEY VERIFICATION

I, **Samuel C. DePaola**, an attorney admitted to practice in the courts of New York State, state that I am a partner of the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
March 27, 2019


SAMUEL C. DEPAOLA, ESQ.